

BEFORE THE STATE BOARD OF MARRIAGE AND FAMILY THERAPIST
EXAMINERS AND STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

Case Nos. 2021-5293, 2021-5406, 2022-2289, 2021-5290, 2021-5401, 2022-2291, 2022-7437,
2022-7438 and 2021-7956

FINAL BOARD ORDER

IN THE MATTER OF THE PROCEEDING REGARDING PAUL EDMUND GUTIERREZ,
JR., MARRIAGE AND FAMILY THERAPIST, LICENSE NO. MFT.0001560; LICENSED
PROFESSIONAL COUNSELOR, LICENSE NO. LPC.0013204,

Respondent.

The State Board of Marriage and Family Therapist Examiners and State Board of
Licensed Professional Counselor Examiners (“Boards”), pursuant to and after formal
proceedings before a duly qualified Administrative Law Judge (“ALJ”) in accordance with the
provisions of section 12-245-101, et al., of the Colorado Revised Statutes (“Act”) and the
Administrative Procedure Act (“APA”), and having reviewed the ALJ’s Initial Decision, hereby
enters the following findings and order:

1. Respondent Paul Edmund Gutierrez, Jr. (“Respondent”) was served with a
Notice of Charges on January 17, 2023.
2. On or about October 24 and October 25, 2023, a hearing was held before an ALJ.
Respondent was present at the hearing and represented by counsel.
3. The ALJ’s Initial Decision was rendered on January 16, 2024, and received by
the Boards on January 17, 2024. A copy of the Initial Decision is attached to this Order and
incorporated herein by reference.
4. The Initial Decision was served on Respondent and the Boards’ prosecuting
attorney on January 18, 2024, via first-class mail and electronic mail.
5. Neither the Board’s prosecuting attorney nor Respondent filed exceptions.
6. Upon review of the Initial Decision and Record, the Boards hereby:
 - a. Accept the Findings of Fact, as set forth in paragraphs one through sixty-
one of the attached Initial Decision, in their entirety.

- b. Adopt the Conclusions of Law, as set forth in the attached Initial Decision, in their entirety.
- c. Adopt the ALJ's recommended sanction of Revocation, as set forth in the final paragraph of the attached Initial Decision.

7. IT IS THEREFORE ORDERED by the BOARDS that Respondent's licenses to practice as a marriage and family therapist and licensed professional counselor in the state of Colorado are hereby REVOKED from the effective date of this Final Board Order. The Final Board Order is hereby effective upon service to Respondent. Any party adversely affected or aggrieved by any agency action may commence an action for judicial review before the Court of Appeals within forty-nine (49) days after such action becomes effective. Reference sections 24-4-106(11) and 12-20-408, C.R.S.

SO ORDERED this 3rd day of May, 2024.

FOR THE STATE BOARD OF MARRIAGE
AND FAMILY THERAPIST EXAMINERS AND
STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS

A handwritten signature in black ink, appearing to read "Sam Delp", written over a horizontal line.

SAM DELP
DIVISION DIRECTOR

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, Denver, CO 80203	
State Board of Marriage and Family Therapist Examiners Petitioner VS. Paul E Gutierrez Jr Respondent	
	▲ COURT USE ONLY ▲
	CASE NUMBER: MFT 2023-0001
NOTICE OF ORDER ISSUANCE	

The attached Initial Decision was issued January 16, 2024 in the above referenced case.

Dated: January 17, 2024

/s/ Nicole Quarles

Nicole Quarles
Court Clerk

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, 4 th Floor, Denver, Colorado 80203	 COURT USE ONLY 
STATE BOARDS OF MARRIAGE AND FAMILY THERAPIST EXAMINERS AND LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioners, VS. PAUL EDMUND GUTIERREZ, JR., Marriage and Family Therapist, License No. MFT.0001560; Licensed Professional Counselor, License No. LPC.0013204, Respondent.	
INITIAL DECISION	

The Colorado State Boards of Marriage and Family Therapist Examiners and Licensed Professional Counselor Examiners (“the Boards”) charge Respondent with two counts of unprofessional conduct related to his conduct with clients and employees. The Notice of Charges contained three counts. At the outset of the hearing, the Boards indicated that they were withdrawing Count III. A hearing was held on October 24 and October 25, 2023, before Administrative Law Judge (ALJ) Tim Nemechek. The Boards were represented at the hearing by Assistant Attorneys General Brianna S. Tancher, Colette A. Gaenssle, Sarah J. Donahue, and First Assistant Attorney General Robert W. Finke. Respondent was represented by Michael Song, Esq. The parties stipulated to the admission of the Boards’ Exhibits 1, 4 (pp. 16-21), 5, 6, 7, 8 and 10. At hearing, the Boards’ Exhibits 2, 3, the entirety of Exhibit 4 and Exhibit 11 were admitted into evidence. The hearing was recorded. Judge Nemechek left the Office of Administrative Courts in December of 2023. The undersigned ALJ watched and listened to the hearing in this matter and reviewed all the admitted exhibits, as well as the pleadings filed in this case. **The unredacted exhibits submitted in this case are sealed as they contain identifying information.**

Case Background

Respondent is a Licensed Professional Counselor and a licensed Marriage and Family Therapist. The Boards received complaints from two of Respondent’s clients, a complaint from several of Respondent’s former employees, and a complaint from a supervisor of a former employee. One of the client complaints alleges that Respondent had sexual contact with the client when they were in a therapeutic relationship. The other client complaint alleges that Respondent made inappropriate sexual comments to the

client during therapy and inappropriately touched the client as she was leaving Respondent's office after a counseling session. The employee complaint and the complaint from the supervisor of a former employee allege that Respondent made inappropriate sexual comments toward the employees and made sexual comments about the physical appearances of his own clients and the employees' clients. The employee complaint further alleges that Respondent made a medical diagnosis of one of the employees, a non-client, and shared his diagnosis with others. Moreover, that complaint alleges that Respondent failed to pay his employees. After the Boards received the employee complaints and the complaint from the supervisor, Respondent filed a complaint against one of the complainants. The Boards determined that the complaint filed by Respondent was retaliatory. In response, the Boards filed their own complaint against Respondent based on his filing of a retaliatory complaint.

Findings of Fact

1. Respondent was licensed to practice as a professional counselor within the State of Colorado on or about July 28, 2016, under license number LPC.0013204, and was so licensed at all times relevant to this matter. He also provided mental health services in the United States Army for approximately 20 years.

2. Respondent was licensed to practice as a marriage and family therapist on or about July 12, 2018, under license number MFT.0001560, and was so licensed at all times relevant to this matter.

3. The Boards have jurisdiction over the person of Respondent, Respondent's licenses to practice, and the subject matter herein.

4. Respondent is the registered business owner of Pathways Psychological Services, LLP ("Pathways").

5. The Board of Licensed Professional Counselor Examiners opened its own complaint against Respondent regarding the complaint he filed with the Board of Licensed Professional Counselor examiners against K.S.1. on or around September 26, 2021, which the Board believed to be retaliatory in nature. As of September 22, 2023, Respondent had not responded to that complaint.

K.S.2

6. K.S.2 is known to Respondent and was one of Respondent's female therapy clients at Pathways. Respondent diagnosed K.S.2 with Generalized Anxiety Disorder and Post-traumatic Stress Disorder. At hearing, Respondent testified that K.S.2 had a lot of trauma from her childhood, which combined with her Generalized Anxiety Disorder, affects her memory.

7. During a therapy session in June of 2019, K.S.2 was sitting on the couch in Respondent's office and Respondent was sitting in a chair. At some point during the session, Respondent told K.S.2 that she was sexually frustrated. Respondent then rolled his chair over to the couch and touched K.S.2's legs.

8. Respondent then got on the couch with K.S.2, got on top of K.S.2, and put his hands down her pants and penetrated her vagina with his fingers. Respondent also

touched K.S.2's breasts, and he exposed his penis to her. K.S.2 was scared and froze for a few minutes, but she was able to push Respondent off her.

9. K.S.2 was very upset by the incident and cancelled all her upcoming appointments with Respondent and did not see Respondent again.

10. On or about February 11, 2022, K.S.2 called Respondent and recorded the telephone conversation. The recording of the telephone call was admitted into evidence as Exhibit 8. At hearing, K.S.2 testified that she called Respondent because she wanted justice.

11. During the telephone call, K.S.2 repeatedly told Respondent that she was in therapy and was seeking closure. She wanted to know why he had "hit on her." At first, Respondent told K.S.2 that he did not remember who she was and didn't know what she was talking about.

12. At one point during the telephone call, K.S.2 told Respondent that if she sent him a picture of herself, he would remember who she was. K.S.2 sent the picture.

13. After seeing K.S.2's picture, Respondent said that he "kind of" remembered K.S.2, and he didn't know what "came over" him. Respondent stated that he remembered what he did. He also said, "I guess I was sexually attracted to you. That's my issue." He also said that he had no intention of hurting K.S.2, and that "probably at the moment" he wasn't thinking. He also told K.S.2, "I'm sorry I did that to you," and that he felt terrible. He promised K.S.2 that he wouldn't do it to anyone else.

14. When asked at hearing why he admitted during the telephone call to having sexual contact with K.S.2, Respondent said that he thought K.S.2 was suicidal and that he thought that is what she wanted to hear, and that he didn't want her to hurt herself. At hearing, Respondent denied having sexual contact with K.S.2 or any other client.

15. Respondent's explanation for admitting the sexual contact with K.S.2 is not credible. According to K.S.2's intake form and treatment record at Pathways, there is no mention of suicidal thoughts or a history of suicide attempts. In fact, the word "suicide" does not appear in K.S.2's treatment records. There was also no safety plan documented for K.S.2, as would be expected for a suicidal client. Respondent admitted that if he thought K.S.2 was suicidal while he was treating her, he would have put that fact in his records.

16. Moreover, K.S.2 did not mention that she was suicidal during the February 11, 2022, telephone conversation. Instead, she said she was looking for closure and wanted to know why Respondent had done what he did to her.

17. K.S.2 filed a police report regarding the incident, and she was interviewed by a detective, but no criminal charges were filed against Respondent. K.S.2 also filed a complaint with the Department of Regulatory Agencies (DORA) on March 23, 2022. Exhibit 5.

18. At hearing, K.S.2 appeared to remain very upset about the incident with Respondent. K.S.2 did not know any of the other individuals who filed complaints against Respondent.

A.C.

19. A.C., who testified that she doesn't like or trust men, became one of Respondent's female clients at Pathways in or around March of 2021. She began seeing him because she needed a psychological evaluation for her disability application. A.C. saw Respondent weekly until July or August of 2021.

20. During her first session with Respondent, he sat on the couch with A.C. to help her fill out her paperwork. He sat so close to A.C. that his thigh was touching her thigh, which made A.C. very uncomfortable.

21. During Respondent's sessions with A.C., Respondent talked about himself and problems he was having in his marriage, and how he and his wife were living in separate households. Respondent told A.C. that he was on antidepressant and anti-anxiety medications.

22. He also asked A.C. about her marriage and personal life, including her sex life. A.C. did not want to talk about her marriage or her sex life, but Respondent would bring up those subjects. At one point, Respondent asked A.C. how her husband would initiate intimacy, and she responded that her husband would rub her neck.

23. Respondent made inappropriate comments to A.C. during therapy sessions. For example, once A.C. had a hot flash and made a comment about the office being hot, and Respondent replied by saying, "Maybe it's just you." The comment made A.C. uncomfortable because of the way Respondent said it and the look on his face. Several times, Respondent told A.C. she was very beautiful, and he understood why men came on to her.

24. At the end of A.C.'s final session with Respondent, he walked her to the door of the waiting room. When she reached for the door, Respondent reached up and began to massage A.C.'s neck. He then began running his hands down A.C.'s back. He also sniffed A.C.'s hair and she heard him moan. A.C. testified that Respondent rubbed his hands down her back for 30 to 40 seconds, but on cross examination, she testified that it was probably for a shorter period of time.

25. After Respondent touched A.C., she was very angry, and told him that she had to leave. She then went home and contacted attorneys to discuss Respondent's behavior, and a few months later, she filed a police report on her attorney's advice. There was no evidence presented that Respondent ever received any criminal charges based on A.C.'s police report. A.C. also filed a complaint with DORA on October 4, 2022. Exhibit 3.

26. A.C. credibly testified that the incident of Respondent touching her back negatively impacted her as it further lessened her trust in men.

27. Respondent never provided A.C. with the psychological evaluation that she needed for her disability determination.

28. A.C. does not know any of the other individuals who filed Complaints against Respondent.

K.N.

29. K.N. is a Licensed Professional Counselor, licensed in both Colorado and Arizona. In June of 2019, K.N. had graduated with her master's degree, but she needed to earn supervised hours to become licensed as a professional counselor. K.N. found Pathways online and applied there to become a contractor and supervisee. Pathways hired K.N. and Respondent became her supervisor.

30. As part of the supervision process, K.N. had weekly one-on-one meetings with Respondent where she would bring questions or thoughts to discuss regarding clients.

31. Respondent made sexualized or inappropriate comments in K.N.'s presence that made her uncomfortable. For example, K.N. asked Respondent to do couple's therapy with her, and Respondent said, "That would be like a foursome." Respondent's comment was made in front of a client. Respondent also told K.N. about a client he had who didn't wear underwear, and that the client was coming on to him. Respondent made comments to K.N. about women he would see out the window and about the appearance of female clients' legs.

32. The Pathways office has a narrow space or closet that had a refrigerator on one side and a printer on the other side. When K.N. was in the closet area, Respondent came into the space, got close to K.N.'s face, and said, "Can I reach between your legs and grab something wet?" K.N. froze up because she felt that the comment was sexually motivated; the comment made her feel "gross" and "disgusting."

33. K.N. became so uncomfortable with Respondent that she would no longer have one-on-one meetings with him, and would have a coworker, H.W., sit in on their meetings. K.N. felt like she couldn't leave Pathways because she needed the income, and she was trying to get her supervised hours.

34. Although Respondent had never been in a therapeutic relationship with K.N., he frequently said that K.N. had ADHD. During a meeting with K.N., K.N.'s husband and another Pathways employee, H.W., Respondent said that K.N. had ADHD that needed to be controlled by medications. K.N. has never been diagnosed with ADHD, and she did not give her consent for Respondent to say anything to others about any medical conditions she had. K.N. felt belittled and ashamed by Respondent's comments. Respondent refused to approve K.N.'s supervision hours when she left Pathways, and he never fully paid her for the work she did there.

H.W.

35. H.W. is a Licensed Professional Counselor in Colorado, who worked at Pathways from September 2019 to December 2019. Respondent was H.W.'s clinical supervisor; like K.N., H.W. was working to get the supervised hours she needed for licensure.

36. H.W. saw Respondent almost daily and met with him once per week for supervision.

37. From early on in her employment at Pathways, H.W. noticed that Respondent made comments regarding the physical appearance of clients. For example, he told H.W. he had a female who was wearing a short skirt and no underwear and appeared to be “asking for it.” He also talked about clients’ legs, and he asked H.W. if a client was “hot.”

38. H.W., who was 26 years old at the time, felt confused and scared by Respondent’s sexual comments about clients.

39. One day, H.W. was in the closet area with the printer and the refrigerator when Respondent got between her and the exit. He pulled up pictures of women with big breasts on his phone and said how “hot” they were.

40. H.W., like K.N., became uncomfortable meeting with Respondent alone so they started meeting with him for supervision together because they felt safer. They felt unsafe because they asked Respondent about an issue regarding independent contractors and insurance. At first, Respondent was willing to listen to their concerns, but then he became angry.

41. H.W. also felt unsafe around Respondent because he would stand so close to her that they would be shoulder-to-shoulder, and he she could feel his breath on her face.

42. Respondent also asked H.W. if she wanted him to do EMDR, a therapy technique for trauma, on her. H.W. declined as it would have been improper and created a dual relationship for Respondent to act as her supervisor and to provide therapeutic treatment to her.

43. H.W. left Pathways in December of 2019; she wanted to leave earlier but needed the money. Respondent would not sign off on H.W.’s supervision hours, and on her last day, he gave her a list of things she had been doing wrong; prior to that day, he had not raised those issues with her, other than H.W. using a certain billing code for diagnosis to a file.

K.H.

44. K.H., a Licensed Clinical Social Worker, went to work as a therapist at Pathways in January of 2020, and she worked there until May of 2020. Respondent hired her to work as a clinical therapist.

45. Respondent made comments to K.H. about the physical appearance of her female clients, who Respondent described as “hot.” K.H. told Respondent that it made her uncomfortable when he talked about the physical appearance of her clients, and he responded by telling her to “lighten up.” He referred to one of K.H.’s transgender clients as “it” and another one of her child clients as a “little bastard.”

46. Respondent also discussed the physical appearance of his own female clients with K.H. As he told K.N. and H.W., Respondent told K.H. about a client who wore tight skirts, showed cleavage and would “flash” him when she wasn’t wearing underwear.

Respondent told K.H. that the client got mad at him for getting hard during the therapy sessions, but he was just a red-blooded American male, so what could the client expect. This story made K.H. uncomfortable and sick to her stomach.

47. K.H. did not feel comfortable referring clients to Respondent. K.H. was not trained in EMDR therapy, and Respondent wanted K.H. to refer the clients he had described as “hot” to him for EMDR therapy. K.H. did not do so as she did not think it would be good to refer vulnerable clients to someone who sexualized them.

48. Respondent discussed his former employees, K.N. and H.W. with K.H. He told K.H. that one of the former employees was “dumb” and the other one was “borderline,” and that they had tried to ruin his business.

49. Respondent, who was not K.H.’s therapist, offered to do EMDR on her. She politely refused. Like, H.W., K.H. knew it was not appropriate for Respondent to treat her as he was her supervisor, and if he treated her, it would create a dual relationship.

50. K.H. decided to leave Pathways in May of 2020 because she had anxiety over the comments Respondent made about her clients, his clients, and because she wasn’t getting paid. K.H. was also concerned about Respondent’s lack of transparency in finances and because he would get angry and raise his voice over small things. Respondent still owes K.H. money for her work, and she is upset that he hasn’t paid her.

51. K.H. and H.W. met through a Facebook group for therapists. After meeting and discussing their mutual concerns regarding Respondent’s misconduct, K.H., H.W. and K.H., and three other employees, filed a complaint against Respondent at DORA on August 22, 2021. Exhibit 4. K.H., K.N. and H.W. testified that they felt that they were mandated to report Respondent’s conduct, and they all had concerns about him continuing to practice as a therapist or counselor.

52. At hearing, Respondent denied the allegations made by each of the women who testified against him. With respect to K.N., H.W., and K.H., Respondent testified about the things each of them had done wrong, in his perception, while working at Pathways.

Expert Testimony

53. Richard Charles Knoeckel, III, a Licensed Professional Counselor, was accepted, without objection, as an expert in Ethics and Standards of Care in Counseling. He was the only expert witness who testified at hearing. Mr. Knoeckel is familiar with the codes of ethics for the American Counseling Association, the National Board of Certified Counselors and the American Association of Marriage and Family Therapists.

54. In forming his expert opinions regarding this case, Mr. Knoeckel read the complaints made to DORA, the responses to those complaints, police reports, the audio recording of the telephone call between Respondent and K.S.2, the applicable codes of ethics and the Boards’ Notice of Charges. Mr. Knoeckel’s report was admitted as Exhibit 11.

55. Mr. Knoeckel persuasively testified that the applicable codes of ethics are

not aspirational; they are mandatory and touch on every aspect of counseling. He explained that clients who come for counseling are vulnerable and emotionally stressed; therefore, it is very important for the counselor to act in a way that doesn't cause harm.

56. Mr. Knoeckel persuasively testified that sexual contact between a counselor and a client corrupts and undermines the therapeutic process. He further testified that counselors are prohibited from making comments that constitute sexual harassment by both the National Board of Certified Counselors and the American Counseling Association.

57. Mr. Knoeckel testified regarding K.S.2's complaint, and persuasively testified that the conduct in question constituted sexual assault and was below the generally standard of care for a counselor. It is Mr. Knoeckel's persuasive opinion that any sexual contact between a counselor and a client has the potential for trauma because it destroys trust in the counseling process, where the client is already vulnerable, even if the contact is welcome. If the contact is unwelcome, it can traumatize the client.

58. In Mr. Knoeckel's persuasive opinion, any sexual touching between a client and a counselor falls below the standard of care in counseling.

59. Mr. Knoeckel testified that in his persuasive opinion Respondent's touching of A.C., as described in her complaint, was inappropriate and unethical.

60. In Mr. Knoeckel's persuasive opinion, Respondent's conduct fell below the standard of care for a counselor when he made sexual comments to his employees, including comments about clients' bodies, and could constitute sexual harassment.

61. Mr. Knoeckel persuasively testified that it was not appropriate for Respondent to make a diagnosis of a non-client, as he did with K.N., and it was ethically prohibited for Respondent to share that diagnosis, as he did with K.N.'s husband and H.W. Respondent also told K.H. that either K.N. or H.W. was "borderline." Mr. Knoeckel explained that when a mental health professional, such as Respondent, makes a diagnosis, there is a presumption of accuracy, which can stigmatize the person who receives the diagnosis.

Discussion and Conclusions of Law

Grounds for Discipline

The Board may take disciplinary action against a licensee if the licensee has committed any of the acts listed in § 12-255-224, C.R.S. In this case, it is established that Respondent violated the following two provisions, as alleged in Counts I and II of the Notice of Charges:

Count I – violation of § 12-245-224(1)(g)(I), C.R.S. This section subjects a licensee to discipline if he or she, "[h]as acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person

practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline. Respondent violated this provision by (1) having sexual contact with K.S.2; (2) touching A.C. in an inappropriate manner; (3) saying inappropriate things to A.C. during therapy sessions; (4) making sexual comments about clients' bodies; (5) making sexual comments towards his employees; (5) diagnosing a non-client; and (6) sharing his diagnosis of a non-client with others without the person's consent. The Boards also alleged that Respondent's conduct of filing a retaliatory complaint fell below the generally accepted standards of care; however, insufficient evidence was produced regarding that allegation.

Count II – violation of § 12-245-224(1)(r), C.R.S. This section subjects a licensee to discipline if he or she "[h]as engaged in sexual contact, sexual intrusion, or sexual penetration, as defined in section 18-3-401, with a client during the period of time in which a therapeutic relationship exists or for up to two years after a period in which a therapeutic relationship exists. Section 18-3-401.5, C.R.S. defines "sexual intrusion" as "any intrusion however slight, by any object or any part of a person's body except the mouth, tongue, or penis into the genital or anal opening of another person's body if that intrusion can be reasonably construed as being for the purpose of sexual arousal, gratification, or abuse." Respondent violated this provision by: (1) touching K.S.2's breasts and legs; (2) getting on top of K.S.2; (3) showing his penis to K.S.2; (4) and putting his fingers into K.S.2's vagina.

Sanction

Where, as here, grounds for discipline are established, the Boards may impose discipline in the form of a letter of admonition, place the licensee on probation, license suspension, or license revocation. Section 12-245-225(a)(b) and (c), C.R.S.

The Board seeks to revoke Respondent's licenses. The ALJ agrees with the Board's request. Given the severity of Respondent's actions, especially, the sexual assault of K.S.2, the only appropriate sanction is revocation.

Initial Decision

Respondent's licenses to practice as a Licensed Professional Counselor and a Marriage and Family Therapist are revoked.

Done and Signed

January 16, 2024

/s/ Hollyce Farrell
HOLLYCE FARRELL
Administrative Law Judge